

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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KYLE SAXON & LAMONT REESE,

Plaintiffs,

-against-

09 CV 3293 (CPS)(VVP)

AMENDED COMPLAINT

JURY DEMAND

THE CITY OF NEW YORK, POLICE
OFFICER JOSEPH FERNANDEZ (Shield
22694), POLICE OFFICER ADAM
ROKOS (Shield # 24654), POLICE
OFFICER PATRICK ETIENNE (Shield
27912), SERGEANT JAMES CUESTA
(Shield # 90797) and POLICE OFFICER
JOHN DOE 1,

Defendants.

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Plaintiffs KYLE SAXON & LAMONT REESE, by their attorney(s), THE LAW
OFFICES OF WALE MOSAKU, P.C., complaining of the defendants, THE CITY OF
NEW YORK, POLICE OFFICER JOSEPH FERNANDEZ (Shield # 22694), POLICE
OFFICER ADAM ROKOS (Shield # 24654), POLICE OFFICER PATRICK ETIENNE
(Shield # 27912), SERGEANT JAMES CUESTA (Shield # 90797) and POLICE
OFFICER JOHN DOE 1, of the New York City Police Department (collectively referred
to as the Defendants), upon information and belief, allege as follows:

NATURE OF THE ACTION

1. This is an action at law to redress the deprivation of rights secured to the plaintiffs under color of statute, ordinance, regulation, custom, and/or to redress the deprivation of rights, privileges, and immunities secured to the plaintiffs by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States, and by Title 42 U.S.C. § 1983 [and § 1985], [and arising under the law and statutes of the State of New York].

JURISDICTION

2. The jurisdiction of this Court is invoked under 28 U.S.C. §1343(3), this being an action authorized by law to redress the deprivation of rights secured under color of state and city law, statute, ordinance, regulation, custom and usage of a right, privilege and immunity secured to the plaintiffs by the Fourteenth Amendment to the Constitution of the United States. Jurisdiction of this court exists pursuant to 42 USC §1983 and under the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution.
3. As the deprivation of rights complained of herein occurred within the Eastern District of New York, venue is proper in this district pursuant to 28 U.S.C. §§1391 (b) and (c).

THE PARTIES

4. During all times material to this complaint, the plaintiff KYLE SAXON was a resident of the State of New York, residing in Kings County.
5. During all times material to this complaint, the plaintiff LAMONT REESE was a resident of the State of New York, residing in Kings County.
6. At all relevant times, defendant POLICE OFFICER JOSEPH FERNANDEZ (Shield # 22694), POLICE OFFICER ADAM ROKOS (Shield # 24654), POLICE OFFICER PATRICK ETIENNE (Shield # 27912), SERGEANT JAMES CUESTA (Shield # 90797) and POLICE OFFICER JOHN DOE 1, of the New York City Police Department (collectively referred to as “defendant officer(s)”), were upon information and belief, and still are, law enforcement officers in the employ of the Police Department of the City of New York.
7. At all times herein, the defendant officers were employed as law enforcement officers of the City of New York, State of New York, and were acting under the color of their official capacity, and their acts were performed under color of the statutes and ordinances of the City of New York and/or the State of New York. The defendant

officers were the servants, agents, and employees of their co-defendant, the City of New York, so that their acts are imputed to the City of New York and its Police Department.

8. At all relevant times, the defendant City of New York was/is a municipal corporation of the State of New York, and was/is the employer of the defendant Officers, through it's Police Department, namely New York City Police Department and the actions of the defendant officers complained of herein were done as part of the custom, practice, usage, regulation and/or direction of the City of New York.

9. Plaintiffs sue all defendants in their individual and official capacities.

FACTUAL ALLEGATIONS COMMON TO ALL CAUSES OF
ACTION

10. On or about November 29, 2008 at approximately 05:00 a.m., on Dumont Avenue, at or close to its intersection with Sheffield Avenue, in Brooklyn, Kings County, New York State, the plaintiffs were falsely arrested without probable cause by the defendant officers.
11. At the above-referenced place and time, the plaintiff Kyle Saxon, while driving his girlfriend's vehicle, was without any basis or justification, stopped by one or more of the defendant officers. The plaintiff Lamont Reese was a passenger in Mr. Saxon's vehicle at that time. The plaintiffs were both immediately placed in handcuffs.
12. The defendant officers informed the plaintiffs that they had received "a call" that the car Mr. Saxon was driving was stolen.
13. The defendant officers used that as a pretext to thoroughly search Mr. Saxon's vehicle as well as the person of each plaintiff. Nothing illegal was recovered from the person of either plaintiff, nor was anything illegal recovered from Mr. Saxon's girlfriend's vehicle.
14. Nevertheless, the plaintiffs were taken away from the scene and driven around for approximately six (6) hours.

15. Both plaintiffs immediately declared their innocence, but were disregarded by the defendant officers.
16. The plaintiffs were then taken to the 75th Police precinct where they were placed in the custody of other officers, one of whom, upon information and well founded belief, later prepared a criminal complaint against each plaintiff
17. The plaintiffs were then fingerprinted and photographed.
18. At approximately 11:00 a.m. on December 1, 2009, the plaintiffs were arraigned before a judge on the following charges: P.L. §221.10 (Criminal Possession of marihuana in the fifth degree); and P.L. §221.05 (unlawful possession of marihuana).
19. Both plaintiffs pleaded “not guilty” to those charges, and they were each released upon their own recognizance, each having been unlawfully imprisoned for more than two (2) days in jail.
20. The Kings County criminal court docket number for the case that was wrongfully instituted against plaintiff Kyle Saxon was “2008KN088990”. That action was dismissed on March 5, 2009.
21. The Kings County criminal court docket number for the case that was wrongfully instituted against plaintiff Lamont Reese was “2008KN088989”. That action was dismissed on March 5, 2009.

FIRST CAUSE OF ACTION: FALSE ARREST AND FALSE IMPRISONMENT

22. By this reference, the plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 21 of this complaint as though fully set forth herein.
23. The above-described respective arrest(s), detention(s) and imprisonment(s) of the plaintiffs were without just or probable cause and without any warrant or legal process directing or authorizing each plaintiff’s arrest or subsequent detention.
24. As a result of plaintiffs above-described false arrest(s) and imprisonment(s), they have been caused to suffer humiliation, great mental and physical anguish, embarrassment and scorn among those

who know them, were prevented from attending to their necessary affairs, have been caused to incur legal expenses, and have been otherwise damaged in their character and reputation.

25. Consequently, the plaintiffs have been damaged and hereby demand compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

26. The defendant officers were at all material times acting within the scope of their employment, and as such, the defendant City is vicariously liable for the defendant officers acts as described above.

27. This action falls within one or more of the exceptions of the New York State Civil Practice Law and Rules §1602.

SECOND CAUSE OF ACTION: MALICIOUS PROSECUTION

28. By this reference, the plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 27 of this complaint as though fully set forth herein.

29. There was absolutely no probable cause for the defendant officers to arrest the plaintiffs for the above-referenced crimes at the above-referenced scene of the arrest.

30. The commencement and prosecution of the criminal judicial proceedings against the plaintiffs, including the arrest(s), the imprisonment(s), and the charges against each plaintiff were committed by or at the insistence of the defendants without probable cause or legal justification and with malice.

31. The criminal judicial proceedings initiated against each plaintiff were terminated in each plaintiff's favor.

32. The arrest(s), the imprisonment(s) and prosecution(s) of the plaintiff were malicious and unlawful because the plaintiffs had not committed any crime and there was no probable cause to believe that the plaintiffs had committed crime(s).

33. The defendants actions were intentional, unwarranted and in violation of the law. The individual defendants had full knowledge that the

charges made before the Court against the plaintiffs were false and untrue.

34. As a consequence of the malicious prosecution by the defendants, the plaintiffs incurred attorney's fees, suffered humiliation, mental anguish, loss of income, and their constitutional rights were violated.
35. The Plaintiffs hereby demand compensatory damages and punitive damages, in the amount of to be determined at trial, against each of the defendants, individually and severally.
36. The defendant officers were at all material times acting within the scope of their employment, and as such, the defendant City is vicariously liable for the defendant officers acts as described above.
37. This action falls within one or more of the exceptions of the New York State Civil Practice Law and Rules §1602.

THIRD CAUSE OF ACTION AGAINST ALL DEFENDANTS:

DEPRIVATION OF CIVIL RIGHTS

38. Plaintiffs repeat and reallege paragraphs 1 through 37 as if each paragraph is repeated verbatim herein.
39. The defendant officers acted under color of law, in their official capacity and their acts were performed under color of the statutes and ordinances, customs and practices of the defendant City of New York. The allegations in this paragraph are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery.
40. Acting under color of law and pursuant to official policy, practice, or custom, defendant City of New York intentionally, knowingly, negligently and recklessly failed to instruct, supervise, control, and discipline, on a continuing basis, defendant police officers in their duties to refrain from unlawfully and maliciously arresting, imprisoning, and maliciously prosecuting innocent members of the public. The allegations in this paragraph are likely to have

evidentiary support after a reasonable opportunity for further investigation or discovery.

41. Acting under color of law and pursuant to official policy, practice, or custom, defendant City of New York intentionally, knowingly, negligently and recklessly failed to instruct, train, and supervise the defendant officers on a continuing basis in the correct procedure for making an arrest. The allegations in this paragraph are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery.
42. Defendant City of New York had knowledge, or, had they diligently exercised their duties to instruct, supervise, control, and discipline on a continuing basis, should have had knowledge that the wrongs which were done, as heretofore alleged, were about to be committed. Defendant City of New York had power to prevent or aid in preventing the commission of said wrongs, could have done so by reasonable diligence, and intentionally, knowingly, negligently or recklessly failed or refused to do so. The allegations in this paragraph are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery.
43. Defendant City of New York, directly or indirectly, under color of law, approved or ratified the unlawful, deliberate, malicious, reckless, and wanton conduct of defendant officers heretofore described. The allegations in this paragraph are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery.
44. The conduct of the defendants deprived the plaintiff(s) of the following rights, privileges and immunities secured to them by the Constitution of the United States:
 - (a) The right of each plaintiff to be secure in his person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States.

(b) The right of each plaintiff to be promptly informed of the nature and cause of the accusation against him, secured to him under the Sixth and Fourteenth Amendments to the Constitution of the United States.

(c) The right of each plaintiff not to be deprived of life, liberty, or property without due process of law, and the right to the equal protection of the laws, secured to him by the Fifth and Fourteenth Amendments to the Constitution of the United States.

(d) The right to be free from unreasonable detention and/or continued detention without probable cause in that each plaintiff was unlawfully detained for more than two days.

45. As a result of the actions of the defendants, each plaintiff was deprived of his rights, privileges, and immunities secured by the United States Constitution, in particular, the Fourth, Fifth, and Fourteenth Amendments, in contravention of 42 USC §1983 and the laws of New York State, and New York City without just or legal cause when defendant City, by its employees and/or agents unlawfully arrested and imprisoned each plaintiff thereby depriving him of his liberty without due process of law.

46. The defendant officers were the actual agents of the defendant City of New York and were following the customs, practices, ordinances and/or regulations of the City of New York when they violated the plaintiffs constitutional and civil rights, and the City of New York is therefore responsible for their acts, and liable to the plaintiffs for the damages they suffered. The allegations in this paragraph are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery.

47. The actual principal/agent relationship between defendant City and the defendant officers was created by the fact they were employees of defendant City, and the City had the right to, and it did indeed regulate and control the activities and conduct of the defendant officers. The allegations in this paragraph are likely to have

evidentiary support after a reasonable opportunity for further investigation or discovery.

48. The defendants' actions were vicious, wicked, cold-hearted, intentional, malicious, unwarranted and in violation of the law. The individual defendants had full knowledge that the charges made before the Court against the plaintiffs were false and untrue.

WHEREFORE, each plaintiff respectfully prays for judgment as follows:

1. For compensatory damages against each defendant in an amount to be proven at trial;
2. For exemplary and punitive damages against each defendant in an amount to be proven at trial;
3. For costs of suit herein, including the plaintiffs reasonable attorney's fees; and
4. For such other and further relief as the court deems proper.

DEMAND FOR TRIAL BY JURY

Pursuant to Rule 38 (b) of the Federal Rules of Civil Procedure, the plaintiffs demand a trial by jury.

Dated: Brooklyn, New York
November 17, 2009

Law Offices of Wale Mosaku, P.C.

By: /s/

Wale Mosaku, Esq. (AM 5872)
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TO:

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SERGEANT JAMES CUESTA (Shield # 90797)
Defendant *Pro se*
75th Police Precinct
1000 Sutter Avenue
Brooklyn, New York 11207

AFFIRMATION OF SERVICE

State of New York

ss.:

County of Kings

I, the undersigned, an attorney duly admitted to practice in the State of New York, with offices at 25 Bond Street, 3rd Floor, Brooklyn, New York, 11201, affirm as follows as under penalties of perjury pursuant to 28 U.S.C. §1746:

On November 17, 2009, I personally caused to be served the within, AMENDED COMPLAINT.

/XX/ **SERVICE BY ECF:** by serving a copy upon each of the following person(s) at the last known address set forth after each name below.

Douglas Heim, Esq.
Assistant Corporation Counsel
City of New York Law Department
Attorney(s) for Defendants
100 Church Street
New York, N.Y. 10007

Dated: Brooklyn, New York
November 17, 2009

/s/

WALE MOSAKU